

		court. Plaintiff is ordered to submit both checks to the clerk of the Orange County Superior Court within 30 days of this ruling (and the first appearance check will be forwarded to the new court along with other materials). Plaintiff is further ordered to take all other steps necessary to effectuate the transfer. The court sets a status conference regarding the transfer of this action for Tuesday, November 10, 2026, at 9:00 a.m., in Department N16. If the transfer is completed prior to that date, no appearances are necessary, and the status conference will go off calendar. If the transfer has not been completed, however, then all counsel are ordered to appear at the status conference, at which time the court may dismiss the action without prejudice pursuant to CCP § 396a(a). Plaintiff to give notice.
3	Alamour vs. Regents of the University of California	CONTINUED TO 8/19/26
4	Choe vs. City Storage Systems LLC	TENTATIVE RULING: Defendants City Storage Systems, LLC (“City Storage”), Restaurant Technology Solutions, LLC (“Restaurant Tech”), 1750 Newport Blvd CM, LLC (“Newport”) demurrer to the first amended complaint by Plaintiffs June Choe and Poke Pub Corp. is VACATED and taken OFF-CALENDAR. Defendants City Storage Systems, LLC (“City Storage”), Restaurant Technology Solutions, LLC (“Restaurant Tech”), 1750 Newport Blvd CM, LLC (“Newport”) motion to strike portions of the first amended complaint by Plaintiffs June Choe and Poke Pub Corp. is VACATED and taken OFF-CALENDAR. Pursuant to the Court of Appeal’s remittitur, filed on June 4, 2026, and opinion, filed April 2, 2026, the petition by Defendants City Storage Systems, LLC (“City Storage”), Restaurant Technology Solutions, LLC (“Restaurant Tech”), 1750 Newport Blvd CM, LLC (“Newport”) to compel arbitration is GRANTED. All parties to this action are ordered to arbitration. This action is stayed pending the resolution of arbitration. Given the Court of Appeal’s remittitur and opinion, therefore, Defendants’ pending demurrer and motion to strike are moot. An ADR Review Hearing is set for December 15, 2026, at 9:00 a.m. in this Department.

		Moving Defendants to give notice.
5	Hoang vs. Toyota Motor Sales, U.S.A., Inc.	TENTATIVE RULING: <u>Motion 1. Demurrer to Complaint</u> Defendant Toyota Motor Sales, U.S.A., Inc., (“TMS”) demurs to the sixth cause of action in the Complaint of Plaintiff Thach D. Hoang. For the following reasons, the demurrer is OVERRULED. <u>Request for Judicial Notice</u> The court DENIES as unnecessary Defendant TMS’s request for judicial notice. (<i>See Zucchet v. Galardi</i> (2014) 229 Cal.App.4th 1466, 1474, fn. 5 [citing <i>Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal.4th 739, 748, fn. 6].) <u>Timeliness</u> While a defendant generally has 30 days after service of a complaint within which to demur to the complaint or to file a motion to strike the complaint, an untimely challenge to the complaint may be considered by the court in its discretion. (<i>See Jackson v. Doe</i> (2011) 192 Cal.App.4th 742, 750.) The court exercises its discretion to consider Defendant TMS’s untimely demurrer, given the unique procedural history in this case. <u>Standard on Demurrers</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 n.7.)